



File No.: EXP202406779

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 26, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access and Deletion against RATINGHUB, S.L. (hereinafter, the respondent).

The complainant alleges that the respondent made unlawful use of their personal data by charging their account without proper notification, for which they have filed a complaint against the same. Furthermore, they claim that their requests for the right of access and deletion have not been addressed.

Regarding the right of deletion, the respondent responded to their request by justifiably denying the deletion of their data. The complainant filed a complaint regarding alleged undue payments that the respondent was required to resolve before deleting their data.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on June 26, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days, they could present the arguments they deemed appropriate, summarizing the following allegations:

"The customer requested a refund of 29.99 euros related to the use of our platform. On March 22, 2024, they filed a complaint through the European Union Online Dispute Resolution (ODR) platform and, on that same date, sent us emails stating that they had not authorized the charges.

Through several emails on March 22 and 25, the customer continued to demand the refund, in addition to stating that they would take legal action since the refund had not yet been processed nor had their account been canceled.

It is worth mentioning that we proceeded to cancel their user account on March 22; however, the customer reactivated their account on March 23. To avoid further complaints and potential additional charges, we permanently suspended the account on March 25.

In Annex 1, we have included all the emails exchanged between the customer and our customer service team. It is noteworthy that, since our last response sent on March 25, we have not received any further communication from the customer.

During the process, the customer expressed their dissatisfaction and mentioned that, if they did not receive the refund, they would file complaints with various organizations. We interpreted this intention as a potential dispute process and, therefore, decided to retain the customer's data in our system to adequately respond to any legal or administrative action and comply with regulatory requirements.

However, upon reviewing the complete documentation, we noticed that, in addition to the refund request, the customer had exercised their right of access to their personal data, something that was not initially managed due to human error in our service process. We deeply regret this omission and acknowledge that we should have treated the access request independently, in accordance with data protection regulations, regardless of the refund and data deletion request."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any arguments they deem appropriate, not having submitted arguments within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The outcome of this forwarding did not satisfy the claims of the complainant. Consequently, on June 26, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint as accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to address any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the data subject's rights under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

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The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as

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information, in particular, regarding the purposes of processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data

concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

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c) for reasons of public interest in the field of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right indicated in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of such processing, or

e) for the formulation, exercise, or defense of claims."

VI

Conclusion

We will begin by stating that this claim will only consider whether the requested rights, rights of access and erasure, have been addressed or not. The other issues raised by the claimant regarding refunds and other matters will not be taken into account in this resolution, as they pertain to matters outside the competencies assigned to this AEPD.

During the processing of this procedure, the entity being claimed has responded to this Agency, but does not demonstrate having addressed the right of access requested by the claimant, sending the required response to their request. In the document submitted on November 7, 2024, by the entity being claimed, it commits to respond immediately to the claimant, "Immediate compliance with the right of access: We will proceed to provide the client with all the requested personal information, respecting the guidelines of the GDPR and the established deadlines." However, there is no record of this.

It should be noted that the right of erasure was responded to by the entity being claimed on March 27, 2024, the same day the claimant submitted their request. The entity being claimed denied it on the grounds that the claimant had filed a complaint (for alleged undue payments), which needed to be resolved before erasing the data. Therefore, the situation aligns with what is provided in paragraph 3.e) of the GDPR, according to which the request for the erasure of personal data may be rejected when the data is necessary for "the formulation, exercise, or defense of claims."

On the other hand, regarding the requested right of access, it is necessary to point out that it cannot be accepted that the response to be given can be expressed merely as part of an administrative procedure, such as the submission of allegations in the present procedure, initiated precisely for not adequately addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible must issue, even in cases where there are no data in the files or even in those cases where it does not meet the established requirements, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, where appropriate, to deny the request with justification indicating the reasons why the right in question should not be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

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Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of the right of access is not attached, it is appropriate to uphold the claim that initiated this procedure in relation to the same.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and TO DISMISS the claim considering that Article 17 of the GDPR has not been infringed, and to urge RATINGHUB, S.L. with NIF B88352109, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right of access or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to RATINGHUB, S.L.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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